

Ramesh Kumar vs Chandigarh Housing Board on 23 March, 2010

STATE CONSUMER DISPUTES REDRESSAL COMMISSION,

STATE CONSUMER
DISPUTES REDRESSAL COMMISSION,

UNION TERRITORY,
CHANDIGARH.

Appeal case No.532/2009

Date of institution:29.9.2009

Date of decision :23.3.2010

Ramesh Kumar, R/o House No.2275/B, Sector-42-C,
Chandigarh. Appellant

V E R S U S

Chandigarh Housing Board,
Sector-9 Chandigarh through its Secretary.

.Respondent

Appeal U/s 15 of Consumer Protection
Act,1986 against

order dated 28.8.2009 passed by Consumer Disputes

Redressal Forum-II,
U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for
respondent

BEFORE : Honble
Mr.Justice Pritam Pal, President

Maj.Gen.S.P.Kapoor (retd), Member

Mrs.Neena Sandhu, Member

JUDGMENT

23.3.2010 Justice Pritam Pal, President

1. By this order we are disposing of a bunch of appeals (details given in annexure B to this order) filed by different appellants against Chandigarh Housing Board (for short hereinafter referred to as CHB) against a common order dated 28.8.2009 passed by the District Consumer Forum-II, U.T. Chandigarh. The main order has been delivered in complaint case NO.76 of 2009 Ramesh Kumar Vs Chandigarh Housing Board. According to the impugned order of the District Forum dated 28.8.2009, the complaint cases involved common questions of facts and law and that was the reason for deciding the bunch of 41 complaint cases by a common order, out of which these 39 appeals have arisen.

2. Appeal case No.73 is directed against one separate order dated 1352 of 2009 passed by District Consumer Forum-I in complaint case No.1352 of 2009 which involves the same questions of facts and law as have been raised in the bunch of appeals referred to above, so, this appeal has been tagged with the bunch of appeals together.

3. Appeal case No.262/2009 filed by Narinder Singh Yadav for enhancement of compensation is directed against the order dated 26.3.2009 passed by District Consumer Forum I, U.T.Chandigarh

whereby his complaint was accepted with costs of Rs.5000/- and Chandigarh Housing Board was directed to handover the possession of the flat by 31.3.2009 and in case of delay, a direction was issued to pay interest @ 10% p.a. on the amount of Rs.12,90,000/- with effect from 1.4.2009 till the date of possession. Whereas Appeal case No.232/2009 has been filed by Chandigarh Housing Board for setting aside the impugned order dated 26.3.2009. Since, similar question of law and facts is also involved in these two appeals, so at the request of counsel for the parties these appeals have also been taken up with other bunch of appeals.

4. Since in all the above mentioned appeals, common questions of law and facts are involved, so, we are deciding all these appeals by this common judgment which is being rendered in appeal case No.532 of 2009 Ramesh Kumar Vs Chandigarh Housing Board. In order to appreciate the controversy involved before us in these appeals, the facts are culled out from complaint case No.76 of 2009.

5. The parties hereinafter shall be referred to as per their ranking before the District Consumer Forum.

6.. The facts as set out in the complaint are that the complainant was allotted by OP two bed room flat on first floor under 96 Two Bed Room Flats Self Financing Housing Scheme, 2005, Sector 49, Chandigarh, on free hold basis vide acceptance cum-demand letter No.5944 dated 22.03.06, whose copy is Annexure C-1. He deposited the entire sale consideration vide receipts, whose copies are Annexures C-2. According to the complainant, the OP was supposed to complete the construction of the dwelling units/flats and deliver its possession within 18 months from the date of allotment letter i.e. by Sept, 2007. It was alleged that the allotment being under self-financing scheme, the flats were supposed to be constructed by using the funds deposited by the allottees and all the allottees under the said scheme had deposited the entire allotment consideration to OP , well within the timeframe stipulated in the acceptance-cum- demand letter but the OP failed to complete the construction and deliver the possession within stipulated period of 18 months.

7. It was further alleged that after construction of the flats/building structure, OP realized that no provision had been made for rain drainage pipe in the approved plan and as such it decided to break the roofs of all the flats from two corners and inserted rain drainage pipe which weakened the strength of the roof and also started giving problems of leakage. It was further alleged that the bathroom toilet drainage bend pipe could be seen protruding on the lower floor ceiling. Thereafter, the complainant and other allottees took up the matter with OP at different level and agitated over the apparent deficiency in service and negligence on the part of OP in inserting rain drainage pipe inside the flats by breaking the roofs, visible toilet drainage pipe on the ceiling of lower floor and the delay in construction of flats and consequent handing over the possession of flats to the allottees. Thereafter, OP decided to again break the roofs and take out the drainage pipe and fix it externally but did nothing to correct the toilet drainage bend pipe which continued to protrude on the ceiling of the lower floor. It was next alleged that as per the housing scheme, possession of the flats was to be given in September,2007 but OP delayed the possession for which it was liable to pay 30% interest p.a at the same rate which is charged from a defaulter. Thus, alleging deficiency in service the complainant filed complaint before the District Forum seeking the following reliefs :

- i) A sum of Rs.2,00,000/- as compensation for mental agony and harassment for not handing over the flat in time and in A-one condition construction.
- ii) A sum of Rs.50,000/- for keeping undue liaison with OP.
- iii) To refund a sum of Rs.5,00,000/- out of the price of the flat on account of loss/weakening of building/roof strength of the flats by repeated breaking of the roof and inserting the rain drainage pipe etc.
- iv) A sum of Rs.1,50,000/- towards rentals on account of failure of OP to hand over the flat in Sept.2007 or interest @ 30% on the price of flat to be calculated w.e.f. Oct. 2007 till the date of delivery of flat.
- v) A sum of Rs.20,000/- as litigation expenses.

8. In the other complaints also, the facts are similar except that the number of the flats allotted, year of the scheme is different and the amounts and dates of payments are also different.

9. On the other hand, the case of OP before the District Forum was that the scheme for allotment of 96 Two Bedroom four storied flats in Sector 49 was floated on 28.10.05 and was closed on 28.11.05. All the allotments under the scheme were subject to the provisions of Haryana Housing Board Act, 1971 as extended to the U.T. of Chandigarh, the provision of the Chandigarh Housing Board (Allotment, Management and Sale of Tenements Regulations, 1979 and the Capital of Punjab (Development and Regulations) Act, 1952 and the rules and regulations made thereunder and as amended from time to time. According to OP, this condition was quoted in clause IX of the brochure. It was pleaded that the present scheme was under Self Financing Housing Scheme and there was no such stipulation that the possession of the flats/dwelling units was to be handed over within a period of 18 months from the date of allotment. However, the delay, if any was due to the reasons beyond the control of OP which was not intentional as the work of construction of dwelling units/flats was to be carried out in different phases. It was submitted that the approved sketch of the plan had been displayed in the brochure and there was provision for rain drainage pipe in the original plan but the said plan had to be got amended in view of the representations made by various allottees and only thereafter drainage pipes were removed from inside and were placed externally as per the demand made by allottees. It was next pleaded that the strength of the roofs had not diminished due to these alterations and the toilet drainage pipe had been laid as per the specification of the drawings/approved plan. It was pleaded that the work of completion of the project was on full pace and the project would be completed soon and the possession of the dwelling units would be handed over to the complainant and other allottees. It was submitted that the dwelling units had been offered with all terms and conditions by way of an advertisement and the same were accepted by the applicants/allttees by signing the application and by giving an undertaking as agreed by both the parties and as such they were not entitled to claim interest. A prayer was made for dismissal of the complaint. Similar reply was filed by OP in other complaint cases.

10. The learned District Consumer Forum after going through the evidence and hearing learned counsel for the parties came to the conclusion that there was no deficiency in service or indulgence in any unfair trade practice on the part of OP and dismissed the same. Other bunch of 41 complaints was also dismissed through common order. However, complaint case No.1352/2009 was dismissed by the District Forum No.1 vide order dated 11.1.2010. The complaint case No.1160/2008 titled Narinder Singh Yadav Vs Chandigarh Housing Board was allowed by the District Forum-I vide its order dated 26.3.2009. Still dissatisfied, complainant Ramesh Kumar and other complainants mentioned in the list annexure B from serial No.1 to 39 have come up in their respective appeals . The other three appeals have been filed against the orders of District Forum-I, U.T.Chandigarh.

11. We have heard learned counsel for the parties and gone through the file carefully. The main point of arguments raised on behalf of the appellants/complainants is that the complainants/allottees of flats had deposited the entire sale consideration, therefore, the possession of the flats was to be delivered by OP after 18 months from the date of allotment letter i.e by September,2007 but OP has failed to delivered the possession till date and as a result of which complainants are forced to retain the rented accommodation. Further there was no provision for the rain drainage pipe and the same was fixed inside the bedrooms but after the representation by the allottees the same was removed and fitted outside the bedrooms thereby weakening the strength of the roofs. The toilet drainage bend pipe is protruding on the lower floor ceiling. It was argued that the appendix-25 of Standard schedule of contract period for building works-2002 according to which the construction was to be made within 55 months is not a mandatory document as it was only advisory in nature and has no connection with the present case of self financing scheme which is based on presumption that the money paid by the allottees in installments have been utilized before the payment of next installment and possession is handed over immediately after the payment of last installments. The amount paid towards dwelling units was lying with the OP beyond 18 months and it was enjoying the interest contrary to the basic principles of self financing scheme. To support their contentions, the learned counsel for complainants placed reliance upon an authority of Honble National Commission in Bhopal Vikas Pradhikaran Vs Kusum Kurchania, 2003(III)CPJ-106(NC)

12. These points of arguments have been repelled by the learned counsel for OP who stated that the flats were constructed under the provisions of Haryana Housing Board Act, 1971 as extended to the U.T. of Chandigarh, the provision of the Chandigarh Housing Board (Allotment, Management and Sale of Tenements Regulations, 1979 and the Capital of Punjab (Development and Regulations) Act, 1952 and the rules and regulations made thereunder and as amended from time to time and this condition was quoted in clause IX of the brochure issued by OP which impliedly meant that the construction would take place as per the regulations as amended from time to time under the above said Acts and Regulations. Before the learned Forum, OP had placed on record the Appendix 25-Standard Schedule of Contract Periods for Building Works, 2002 and as per this schedule, the construction was to be completed within 55 months which period has not expired so far. The learned counsel further submitted that in the approved site plan, there was provision of rain water drainage pipe but on the basis of representations of allottees, the site plan was got amended and the rain water drainage pipe was inserted outside the rooms of the complainants by breaking the portion of the corner of the roofs in order to insert the said pipe outside the rooms of the complainants/allottees. However, by breaking of the corner of the roofs and insertion of the pipe,

the strength of the roofs has not diminished and a certificate to that effect was given by the Engineer of OP Annexure R-3. However, No expert opinion has been placed on record by the complainants to prove that the strength of roofs has diminished because of insertion of the pipe through the corner of the roofs. Thus, the complainants have failed to prove that the strength of the roof has weakened because of the alterations made by OP. The learned counsel for the OP further argued that the site plan was made available to the complainants in the brochure and they had accepted the said site plan where toilet drainage bend pipe was visible on the ceiling and only thereafter had applied for the purchase of the flats. The learned counsel further submitted that a similar controversy arose in respect of flats of Sector-38(west) under self-financing scheme and the claim of complainants regarding grant of interest on the amounts deposited as installments of allotment price of flats was rejected upto National Commission in Pankaj Gupta, advocate Vs Chandigarh Housing Board etc.

13. We have given our holistic view to the rival contentions raised on behalf of the parties and find that there was no express or implied contract between the parties that the possession of flats would be delivered to the complainants within 18 months from the date of allotment and complainants have not been able to plead or prove any express contract to this effect. The contention of the learned counsel for complainants that it was a self financing scheme and as per schedule of payments the complainants had made whole consideration of the flats in question within 18 months of the allotment, so as such OP was under obligation to complete the construction and deliver the possession within 18 months from the date of allotment is not tenable for the reason that OP had not undertaken to complete the construction and deliver the possession to the complainant on the payment of last installment of consideration as per stipulated schedule. No doubt in the authority of Honble National Commission Bhopal Vikas Pradhikaran Vs Kusum Kurchniay (supra) cited on behalf of the complainants it has been held that where the houses are built under the self financing scheme, it is imperative upon OP to deliver the possession within a reasonable time i.e. three months from the payment of last installment. However, in the present case the complainant has not been able to prove that there was any express or implied undertaking by OP to complete the construction and deliver the possession of the house within 18 months of the date of allotment. Whereas OP had mentioned in the brochure that the flats were to be constructed under the provisions of Haryana Housing Board Act, 1971 as extended to the U.T. of Chandigarh, the provision of the Chandigarh Housing Board (Allotment, Management and Sale of Tenements Regulations, 1979 and the Capital of Punjab (Development and Regulations) Act, 1952 and the rules and regulations made thereunder and as amended from time to time and this condition was quoted in clause IX of the brochure issued by OP.

14. Similar question of granting interest/compensation in respect of flats of Chandigarh Housing Board Scheme of Sector-38(west) was agitated in various complaints and all the complaints were dismissed by the District Forum-II, U.T. Chandigarh vide order dated 16.10.2002 passed in complaint case NO.574 of 2001. Complainants then went in appeal before the State Commission, U.T. Chandigarh and all the appeals were dismissed vide order dated 31.3.2003. Complainants then went in revision before the Honble National Commission which was also dismissed. In this regard order dated 11.1.2005 passed by the Honble National Consumer Commission in Revision Petition No.2526 of 2003 titled Mr. Suman Bhatia Vs Chandigarh Housing Board now placed on file has also been perused, where it is evident that in a similar facts and circumstances as involved in the present

appeal before us the order passed by this Commission in Pankaj Gupta Vs Chandigarh Housing Board & others dismissing the appeals of the complainants was upheld by the Honble National Commission. Thus, latest order of the year of 2005 relating to the matter involving self financing scheme still holds good and the same being the latest is to be followed. As indicated above, in Bhopal Vikas Pradhikaran Vs Smt.Kusum Kurchaniya (supra) decided in the year 2003 relied upon by complainants there was unreasonable delay of 5 to 6 years in handing over the possession whereas in the instant case complainants were expecting possession of flats in the year 2007 and it was delivered in the year 2009. Thus, the facts contained therein in the ruling relied upon by the complainants are quite at variance from the facts of case in hand. In this view of the matter, no benefit can be derived by the complainants from the observations made by their lordships in the aforesaid ruling. Since, in the instant case similar questions of granting interest/compensation on the amounts of installments of price of flats have been raised, so we are not inclined to go in further details and hold that complainants are not entitled to any relief on that count.

15. Further, on the representations made by allottees the rain water drainage pipe was inserted outside the rooms of flats. No expert opinion has been placed on record to prove that the strength of roofs has diminished because of insertion of the pipe through the corner of the roofs. It is also not proved on record that the toilet drainage bend pipe has not been laid as per the specification of the drawings/approval plan. However, rain water drainage pipe was altered on the representations made by allottees and according to OP it is not feasible to remove the toilet drainage bend pipe from inside but OP is providing false ceiling as agreed between the parties to cover the said toilet drainage bend pipe and it would not be visible.

16. In view of the above discussion, we are of the opinion that the impugned order dated 28.8.2009 passed by the District Forum is well reasoned and justified in the given circumstances and does not call for any interference. Accordingly we find no merit in the appeal and the same is hereby dismissed, leaving the parties to bear their own costs. Similarly appeals bearing No.532/2009 to 570/2009 and appeal NO.73/2010 are also dismissed. While appeal bearing NO.231/2009 filed by Chandigarh Housing Board is accepted and cross appeal filed by the complainant Narinder Singh Yadav bearing No.262/2009 for enhancement of compensation is dismissed and consequently his complaint case No.1160/2008 is also dismissed.

Certified copies of this order be communicated to the parties, free of charge. The file be consigned to records.

Sd/-

Announced (Justice Pritam Pal)(Retd.) 23rd March,2010 President Sd/-

(Maj. Gen.S.P.Kapoor)(Retd.) Memembr Sd/-

(Mrs. Neena Sandhu) Member *Js Annexure-B Sr.No. Appeal No. C.C. No. Name of appellant/
complainant Name of respondent / OP

1. 532/2009 76/2009 Ramesh Kumar Chandigarh Housing Board.

2. 534/2009 72/2009 Pawan Aggarwal

-do-

3. 535/2009 74/2009 Sanjeev Kumar

-do-

4. 536/2009 75/2009 Surinder Singh

-do-

5. 537/2009 77/2009 Sunil Malik

-do-

6. 538/2009 78/2009 Pooja

-do-

7. 539/2009 79/2009 Gulshan K.Narang

-do-

8. 540/2009 80/2009 O.P.Lali

-do-

9. 541/2009 81/2009 Janak Puri

-do-

10. 542/2009 82/2009 Raju Dhar

-do-

11. 543/2009 83/2009 Vinod Kumar

-do-

12. 544/2009 124/2009 Amarjit Kaur

-do-

12. 545/2009 125/2009 Madhukar Kaura

-do-

13. 546/2009 126/2009 Vinod Aggarwal

-do-

14. 547/2009 127/2009 Baldev Chand

-do-

15. 548/2009 128/2009 Rajiv K.Jindal

-do-

16. 549/2009 129/2009 Padma Soni

-do-

17. 550/2009 130/2009 Maharaj Krishan

-do-

18. 551/2009 131/2009 Ram Phal Malik

-do-

19. 552/2009 132/2009 Shub K.Mahajan

-do-

21. 553/2009 133/2009 Sonia puri

-do-

22. 554/2009 134/2009 Sushil Kumar

-do-

23. 555/2009 135/2009 Taran Sharma

-do-

24. 556/2009 136/2009 Pushpinder Kumar

-do-

25. 557/2009 137/2009 Charanjit Singh saini

-do-

26. 558/2009 138/2009 Navneet Arya

-do-

27. 559/2009 139/2009 Virender Kumar

-do-

28. 560/2009 140/2009 Joginder Kaur

-do-

29. 561/2009 141/2009 Harmit Singh

-do-

30. 562/2009 142/2009 Vikas Kapoor

-do-

31. 563/2009 384/2009 Urmila Ganjoo

-do-

32. 564/2009 430/2009 Satish Kapur

-do-

33. 565/2009 468/2009 Vishal Chohaun

-do-

34. 566/2009 654/2009 Hukam Chand

-do-

35. 567/2009 655/2009 Ashwani Thakur

-do-

36. 568/2009 656/2009 Jatinderpal Singh

-do-

37. 569/2009 657/2009 Rajinderpal Singh

-do-

38. 570/2009 658/2009 Meena Anil Kumar

-do-

39. 533/2009 72/2009 Rajesh Gupta

-do-

1. 73/2010 1352/2009 Satnam

-do-

2. 231/2009 1160/2008 Chd.Housing Board Narinder Singh Yadav

3. 262/2009 1160/2008 Narinder Singh Yadav Chd. Housing Board.

Sd/- sd/- sd/-

(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Neena Sandhu) (Retd.)Member President Member
23.3.2010 STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Rajesh Gupta, R/o House No.3338, Sector-27-D, Chandigarh. Appellant
V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009 passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

Certified copies of this order be communicated to the parties, free of charge. The file be consigned to records.

Sd/- Sd/- Sd/-

(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Pawan Aggarwal, R/o House No.1221/1, Phase-3B-2, Mohali Appellant
V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009 passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Sanjeev Kumar, R/o House No.1283/1, Sector-30-B, Chandigarh.
Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President
Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice
Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal
case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also
dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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records.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Surinder Singh, R/o House No.1218, Sector-34-C , Chandigarh.
Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

Certified copies of this order be communicated to the parties, free of charge. The file be consigned to records.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Sunil Malik, R/o House No.1841, Sector-7-C, Chandigarh. Appellant V E
R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Pooja, R/o House No.3001/2, Sector-41-D, Chandigarh. Appellant V E R
S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President
Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice
Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal
case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also
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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Gulshan Kumar Narang, R/o House No.273, Sector-40-A, Chandigarh.
Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 O.P.Lall, R/o House No.406, Sector-29-A , Chandigarh. Appellant V E R
S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

Certified copies of this order be communicated to the parties, free of charge. The file be consigned to records.

Sd/- Sd/- Sd/-

(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Appeal case Date of decision :23.3.2010 Janak Puri, R/o House No.2018,First floor,Sector 71,
Mohali Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its
Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President
Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice
Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal
case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also
dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Raju Dhar, R/o House No.2280-A, Sector-42-C, Chandigarh. Appellant
V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Vinod Kumar Sharma, R/o House No.1403, Sector-49-B, Chandigarh.
Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Amarjit Kaur, R/o House No.2527, Sector-50-C, Chandigarh. Appellant
V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President
Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice
Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal
case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also
dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Madhukar Kaura , R/o House No.1781,Phase-3B-2, Mohali Appellant V
E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Vinod Aggarwal , R/o House No.186, Sector-38-A,Chandigarh.
Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Baldev Chand Sohal , R/o House No.1151, Pushpak Complex,
Sector-49-B, Chandigarh. Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh
through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President
Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice
Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal
case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also
dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Rajiv Kumar Jindal, R/o House No.186,Sector-38-A,Chandigarh.
Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Padma Soni, , R/o House No.275, Sector-44-A,Chandigarh. Appellant V
E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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Sd/- Sd/- Sd/-

(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision : 23.3.2010 Maharaj Krishan Handul , R/o House
No.2317-A, Sector-42-C, Chandigarh. Appellant V E R S U S Chandigarh Housing Board, Sector-9
Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act, 1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj, advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President
Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu, Member JUDGMENT 23.3.2010 Justice
Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal
case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also
dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision : 23.3.2010 Ram Phal Malik , R/o House No.3494, Sector-46-C, Chandigarh.
Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act, 1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Shub Kumar Mahajan , R/o House No.B-VI/158, Near Professor Salaira Secretary Mohalla, Gurdaspur. Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009 passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Sonia Puri, R/o House No.5327/2,Cat-4, MHC, Manimajra, Chandigarh.
Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President
Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice
Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal
case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also
dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Sushil Kumar , R/o House No. A-29-E, Industrial Area, Phase-VII,
Mohali Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its
Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Taran Sharma, R/o House No.3287, Sector-15-D, Chandigarh. Appellant
V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Appeal case Date of decision :23.3.2010 Pushpinder Kumar , R/o House No.3231, Sector-22-D,
Chandigarh. Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its
Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President
Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice
Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal
case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also
dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Charanjit Singh Saini , R/o House No.1736, Sector-34-D, Chandigarh.
Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Navneet Arya, R/o House No.3225, Sector-40-D,Chandigarh. Appellant
V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Virender Kumar Gupta, , R/o House No.2318-A , Sector-42-C,
Chandigarh. Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its
Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President
Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice
Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal
case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also
dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Joginder Kaur, R/o House No.183,Sector-23-A, Chandigarh. Appellant
V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009 passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Harmit Singh , R/o House No.365, Sector-44-A, Chandigarh. Appellant
V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009 passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Urmila Jalali Ganjoo, R/o House NO.5289/1, Sector-38-West,
Chandigarh. Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its
Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President
Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice
Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal
case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also
dismissed. A copy of that order be placed on this file, which shall be a part of this order.

Certified copies of this order be communicated to the parties, free of charge. The file be consigned to
records.

Sd/- Sd/- Sd/-

(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Satish Kapur, R/o House No.3011,Sector-46-C, Chandigarh. Appellant V
E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009 passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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Sd/-

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Vishal Chouhan , R/o House No.1050,FF, Sector-46-B, Chandigarh.
Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009 passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also

dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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Sd/- Sd/- Sd/-

(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Hukam Chand Chadel, Sr. Manager, PNB, Delhi Road, Bahadurgarh(Haryana) Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009 passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

Certified copies of this order be communicated to the parties, free of charge. The file be consigned to records.

Sd/- Sd/- Sd/-

(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Ashwani Thakur,, , R/o House No.433, Sector-29-A, Chandigarh.
Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President
Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice
Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal
case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also
dismissed. A copy of that order be placed on this file, which shall be a part of this order.

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records.

Sd/- Sd/- Sd/-

(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Jatinderpal Singh , R/o House No.3951, Sector-22-D, Chandigarh.
Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President
Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice
Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal
case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also
dismissed. A copy of that order be placed on this file, which shall be a part of this order.

Certified copies of this order be communicated to the parties, free of charge. The file be consigned to records.

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Rajinderpal Singh , R/o House No.1168,Sector-23-B, Chandigarh.
Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President
Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice
Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal
case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also
dismissed. A copy of that order be placed on this file, which shall be a part of this order.

Certified copies of this order be communicated to the parties, free of charge. The file be consigned to records.

Sd/- Sd/- Sd/-

(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Appeal Date of decision :23.3.2010 Meena Anil Kumar , R/o House No.1369, Pushpac Complex, Sector-49-B, Chandigarh.

Appellant V E R S U S Chandigarh Housing Board, Sector-9 Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009 passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

Certified copies of this order be communicated to the parties, free of charge. The file be consigned to records.

Sd/- Sd/- Sd/-

(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Satnam S/o late Sh.Karam Singh, R/o House No.601,Near Bus Stand,Maloya, Chandigarh. Appellant V E R S U S

1.Chandigarh Housing Board, Sector-9 Chandigarh through its Chairman.

2.Chairman, Chandigarh Housing Board,Sector-9-D,Chandigarh.

.Respondents Appeal U/s 15 of Consumer Protection Act,1986 against order dated 11.1.2010 passed by Consumer Disputes Redressal Forum-I, U.T.Chandigarh.

Argued by: Sh.Sunil Narang,advocate for appellant.

Sh.Rajiv Sharma, advocate for respondents BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

Certified copies of this order be communicated to the parties, free of charge. The file be consigned to records.

Sd/- Sd/- Sd/-

(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Narinder Singh Yadav S/o Sh.Bhagwan Singh Yadav , R/o House No.1570,Sector-7-C,Chandigarh.

Appellant V E R S U S The Chandigarh Housing Board, through its Chairman,Sector-9D, Chandigarh .

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 26.3.2009 passed by Consumer Disputes Redressal Forum-I, U.T.Chandigarh.

Argued by: Sh.Manoj Kumar Sangwan ,advocate for appellant.

Sh.K.K.Gupta, advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal, President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also dismissed. A copy of that order be placed on this file, which shall be a part of this order.

Certified copies of this order be communicated to the parties, free of charge. The file be consigned to records.

Sd/-

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Chandigarh Housing Board,Sector-9-D,Chandigarh through its
Secretary. Appellant V E R S U S Narinder Singh Yadav S/o Sh. Shri Bhagwan Singh Yadav, House
NO.4-A,ESI Dispensary, Sector-29,Chandigarh.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 26.3.2009 passed
by Consumer Disputes Redressal Forum-I, U.T.Chandigarh.

Argued by: Sh.K.K.Gupta, advocate for appellant.

Sh.Manoj Kumar Sangwan , advocate for respondent BEFORE : Honble Mr.Justice Pritam Pal,
President Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010
Justice Pritam Pal, President For the reasons stated in our detailed order of the even date passed
in appeal case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is
accepted . A copy of that order be placed on this file, which shall be a part of this order.

Certified copies of this order be communicated to the parties, free of charge. The file be consigned to
records.

Sd/-

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(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member
STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Date of decision :23.3.2010 Vikas Kapoor, HDFC Bank, SCO 343-44, Sector-35-B, Chandigarh
Appellant V E R S U S Chandigarh Housing Board, Sector-9, Chandigarh through its Secretary.

.Respondent Appeal U/s 15 of Consumer Protection Act,1986 against order dated 28.8.2009
passed by Consumer Disputes Redressal Forum-II, U.T.Chandigarh.

Argued by: Sh.Gaurav Bhardwaj, advocate for appellant.

Sh.K.K.Gupta, advocate for the respondent BEFORE : Honble Mr.Justice Pritam Pal, President
Maj.Gen.S.P.Kapoor (retd), Member Mrs.Neena Sandhu,Member JUDGMENT 23.3.2010 Justice
Pritam Pal, President For the reasons stated in our detailed order of the even date passed in appeal
case No.532/2009 titled Ramesh Kumar Vs Chandigarh Housing Board, this appeal is also
dismissed. A copy of that order be placed on this file, which shall be a part of this order.

Certified copies of this order be communicated to the parties, free of charge. The file be consigned to
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Sd/- Sd/- Sd/-

(Maj.Gen.S.P.Kapoor) (Justice Pritam Pal) (Mrs. Neena Sandhu) (retd) President Member Member